

TITLE 468 - AID TO DEPENDENT CHILDREN

CHAPTER 5 - EMERGENCY ASSISTANCE TO NEEDY FAMILIES WITH CHILDREN (EA)

001. LEGAL BASIS. The Emergency Assistance to Needy Families with Children Program is authorized by Nebraska Revised Statute (Neb. Rev. Stat.) § 68-128. Emergency Assistance must be provided in accordance with the following regulations. Eligible households may only receive Emergency Assistance once in any 12 month period.

002. PURPOSE. The purpose of Emergency Assistance is to provide money or services to or on behalf of a needy child and any other members of the household to meet needs that have been caused by an emergency situation when due to destitution, the household is not able to meet its needs. The program provides a means to address emergency financial situations that are threatening the health or well-being of an eligible child and family. Emergency Assistance benefits must be used to help return the family to a stable environment the family will be able to maintain.

003. DEFINITIONS. For use within Emergency Assistance, the following definition of terms will apply unless the context in which the term is used denotes otherwise:

003.01 CATASTROPHIC ILLNESS. An illness in which inpatient hospitalization is required, excluding childbirth, optional surgery, diagnostic work-ups, and services not included in Medicaid coverage.

003.01 DESTITUTION. Lack of the necessities of life including but not limited to food, shelter, and medical care resulting from an emergency situation.

003.03 EMERGENCY. A sudden and urgent situation requiring immediate action.

003.04 GROSS MONTHLY INCOME. For the purpose of Emergency Assistance eligibility in this Chapter, gross monthly income means the earned and unearned income determined to be available to a household. Earned income includes gross wages, tips, salary, commissions and self-employment. Unearned income includes, but is not limited to:

- (A) Retirement, Survivors, and Disability Insurance (RSDI);
- (B) Railroad Retirement;
- (C) Supplemental Security Income (SSI);
- (D) Aid to Dependent Children (ADC);
- (E) Assistance to the Aged, Blind, or Disabled (AABD);
- (F) Veteran's or military service benefits;

- (G) Unemployment Compensation or disability insurance benefits;
- (H) Disability benefits paid by the employer;
- (I) Child or spousal support; and
- (J) Contributions.

004. APPLICATION. To apply for Emergency Assistance, a household must complete a Department-approved application or ask the Department to add a request for Emergency Assistance to the household's current Economic Assistance case.

005. INDIVIDUAL RESPONSIBILITIES. Individuals applying for or receiving Emergency Assistance are required to:

- (A) Cooperate with the Department in exploring all other sources of available aid, including setting up payment plans with creditors;
- (B) Accept any aid available to alleviate the emergency situation; and
- (C) Develop, with the Department, a plan to alleviate and prevent a recurrence of the emergency situation.

006. INDIVIDUAL RIGHTS. Individuals applying for or receiving Emergency Assistance have the right to:

- (A) Apply. Anyone who wishes to request or apply for Emergency Assistance must be given the opportunity to do so;
- (B) Reasonably prompt action on his or her request for Emergency Assistance;
- (C) Appeal any action or inaction with regard to an application, the amount of the benefit, or failure to act with reasonable promptness;
- (D) Adequate notice of any action affecting his or her Emergency Assistance case;
- (E) Have his or her information treated confidentially;
- (F) Have his or her civil rights upheld. No person may be subjected to discrimination on the grounds of his or her race, color, national origin, sex, age, handicap, religion, or political belief;
- (G) Have the program requirements and benefits fully explained;
- (H) Be represented or assisted in the application process by the person or persons of his or her choice; and
- (I) Referral to other social or private agencies.

007. SCOPE. The Emergency Assistance program has the following guidelines:

- (A) Emergency Assistance is intended to be the program of last resort when no other sources of assistance are available;
- (B) With the exception of catastrophic illness payments, total payments for the benefit period of 12 months of Emergency Assistance must not exceed three times the maximum Aid to Dependent Children payment amount for the applicant's household size;
- (C) This program includes migrant workers and transients statewide if they are otherwise eligible. There is no durational residence requirement;
- (D) If the Medically Handicapped Children's Program (MHCP), an insurance company, or other third party liability (TPL) is involved, approval for assistance may be made before the receipt of a decision by the third party;
- (E) Emergency Assistance must not be used to supplement foster care.

007.01 TIME PERIOD FOR SERVICES. Payment can be made for services to meet needs which arose up to 60 days before and which extend 60 days beyond the application date. To be included, prior and subsequent needs must be directly related to the emergency need for which the application was made and must be such that, if they are met, the current emergency will be resolved. Assistance may be authorized only once per household in any 12-month period.

007.02 EMERGENCY ASSISTANCE BENEFITS. Payment may be made for the following items if applicable eligibility requirements are met.

007.02(A) SHELTER. Payment may be made for a mortgage payment, rent, or a rental deposit if it is verified that payment will alleviate the emergency situation. If the applicant has received an eviction notice, or if an eviction notice is planned or threatened, payment may be made only if it will forestall the eviction. Shelter payment may also be made if the applicant was forced to move with no other shelter arrangements.

007.02(B) UTILITY BILLS. If the applicant has received a shut-off notice, payment may be authorized for electricity, gas, or water. Payment may also be made for delivery of bulk fuel. Emergency Assistance may be used for payment of heating and cooling bills only if the applicant is not eligible for the Nebraska Low Income Home Energy Assistance Program (see Title 476).

007.02(C) HOME FURNISHINGS. Payment may be made for the purchase or repair of only those home furnishings that are essential for health and safety.

007.02(D) EMERGENCY NON-FOOD ITEMS. Emergency non-food items such as toilet paper and cleaning supplies may be purchased.

007.02(E) EMERGENCY FOOD. If Supplemental Nutrition Assistance Program (SNAP) benefits cannot be used to meet the emergency, the purchase of food up to the amount of Supplemental Nutrition Assistance Program benefits a family of that size would receive may be authorized. If the household has already received its total Supplemental Nutrition Assistance Program benefits and an emergency occurs, the Supplemental Nutrition Assistance Program allotment may be supplemented.

007.02(F) EMERGENCY CLOTHING. Emergency clothing may be purchased if it is essential for health and safety.

007.02(G) MOVING COSTS. Moving costs may be paid if it is necessary for the applicant to move in order to lower housing costs, to move from substandard to adequate housing, to leave an unsafe living arrangement, or to enable an unemployed applicant to accept a bona fide job offer. The moving costs must be by the least expensive means available consistent with the applicant's age and physical condition. Emergency Assistance must not be used if the applicant is moving from one job to another.

007.02(H) TRANSPORTATION. Transportation may be provided:

- (i) For a family traveling through the State of Nebraska when an emergency occurs;
- (ii) To obtain emergency medical treatment; or
- (iii) For a parent to visit a hospitalized child who is included in the family unit.

007.02(I) EMERGENCY SPECIAL DIETS. Emergency Assistance funds may be used only if the diet is more expensive than a normal diet. The applicant must provide a copy of the diet and a written statement by a physician that the diet is necessary.

007.02(J) MEDICAL PAYMENTS. Medical payments may be made to alleviate current needs of a family who are in a crisis situation because of a catastrophic illness and only if the family is not eligible for Medicaid. The illness must require hospitalization. Any member of the family may have the illness. Medical services related to the illness, such as physician's fees and ambulance charges, are included. Funeral expenses are not covered. If insurance or third party liability is involved, every effort must be made to resolve issues of liability before Emergency Assistance payment is made. If it is impossible to resolve liability issues within 60 days from the date of Emergency Assistance application, payment may be made but the insurance company must be notified of the Department's right of subrogation. All payments for medical care must be made at rates no higher than those paid by the Nebraska Medicaid program.

007.02(K) EMERGENCY TELEPHONE INSTALLATION. Payment may be made for emergency telephone installation when a phone is necessary because of medical needs.

008. GENERAL ELIGIBILITY REQUIREMENTS. Emergency Assistance may be provided to a needy child and any other member of the household in which the child is living only if:

(A) The child is age 18 or younger. This includes an eligible pregnant woman in her third trimester with no other children;

(B) The child is currently living with one or both parents, or, within six months before the month in which assistance is required, was living with a specified relative or legally appointed guardian or conservator in a place of residence maintained as their own home;

(C) The household is without income and resources immediately accessible to meet the needs caused by the emergency situation;

(D) The child meets requirements of citizenship or alien status, as outlined within Chapter Two of Title 468;

(E) The household meets relevant income eligibility requirements;

(F) The destitution or need did not arise because the child, if age 16 or older and not in school, or the relative responsible for support and care refused without good cause to accept employment or training for employment or quit a job without good cause. However, if the child or family member refused without good cause to accept employment or training for employment or quit a job without good cause, but the emergency was not caused by this action, the family is still potentially eligible for Emergency Assistance. This includes situations in which the adult in the family has been sanctioned for failure to participate in the Employment First Program.

008.01 INCOME ELIGIBILITY REQUIREMENTS. The household's gross income must not exceed 185 percent of the Aid to Dependent Children standard of need for the household size.

009. GENERAL EMERGENCY ASSISTANCE PAYMENT PROVISIONS. Payment for all approved Emergency Assistance is made by payment directly to the provider or to the designated member of the household when appropriate. Payment may be made for all or a portion of the bills related to the family's crisis.

010. APPEAL PROCESS. Every applicant for or recipient of Emergency Assistance has a right to appeal to the Director of the Nebraska Department of Health and Human Services for a hearing on any action or inaction of any Department employee or official in regard to the Emergency Assistance program. The appeal must be filed in writing within 90 days of the action or inaction.

